

TENTATIVE RULING

Raquel Chavez
v.
Constant Staffing, LLC
24CV004236

Plaintiff's Motion for Preliminary Approval of Class and Representative Action Settlement

Hearing Date: August 14, 2026 (continued from May 22, 2026)

Plaintiff Raquel Chavez's ("Plaintiff") Motion for Preliminary Approval of the Class and Representative Action Settlement is **GRANTED**. The supplemental documents address the issues identified in the Court's previous order. In her supplemental filing, Plaintiff shows that the parties have agreed to designate CASA of Monterey County as the cy pres beneficiary. Further, the Class Notice, which will be provided in Spanish and English, was amended to (1) state that any uncashed or abandoned settlement funds will be sent to the cy pres beneficiary, and (2) inform Class Members of Defendant's right to withdraw. Therefore, the Court finds that the settlement is fundamentally fair, adequate, and reasonable. [*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801-1802; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.]

The Court reiterates that Plaintiff's request for a \$10,000 representative service fee exceeds the typical \$5,000 award in Monterey County. By the time of the Final Approval hearing, the Court can make a final decision on whether an award of \$10,000 is justified and whether the request should be granted.

The case is scheduled for a Motion for Final Approval on **April 2, 2027**, at 8:30 a.m., unless the parties agree to a different date. Any additional filings, including those addressing the representative service fee, must be filed and served 16 court days before the hearing. As a result of this ruling, the Further Case Management Conference scheduled for August 14, 2026, is **CONTINUED** to April 2, 2027, to align with the Final Approval hearing. The Court will complete and sign the Proposed Order, lodged on July 31, 2026, accompanying Plaintiff's supplemental filing.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.